

powers; but if it was intended to be said that a devisee, subject to a charge, could not sell and sign a receipt for the money, the doctrine is inconsistent with the nature of a charge of debts in equity as commonly understood. The prevalent opinion hitherto is believed to have been that a devisee subject to debts can sign a receipt for the purchase-money (*f*), and the cases in which the Court has upheld purchases from a devisee with the concurrence of the executor but without relying upon such concurrence, would be a trap for purchasers should the Court now refuse to uphold a purchase from a devisee only. Considering the declaratory words contained at the end of the 18th section of Lord St. Leonards' Act, it may now, it is conceived, be safely assumed that a purchaser from a devisee subject to a charge of debts, will without the concurrence of the executor acquire a good title.

γ. Charge of debts where there is no devise of the estate. —

If a testator charge his debts on the real estate, and *does not devise the estate at all*, but allows it to descend to the *heir*, can the heir sell and sign a receipt for the purchase-money? It appears to be clear that he cannot, for he takes nothing under the will, and cannot therefore be regarded as a person constituted by the * testator a trustee by [*466] implication for payment of debts (*a*); he can pass the legal estate, but he could not sign the receipt; *i.e.*, if the heir misapplied the money the creditors might still come upon the estate.

But in this case, if the heir is disabled from selling can the *executor* sell (*i.e.*, independently of Lord St. Leonards' Act, to be mentioned presently), for otherwise the charge of debts amounts to a direction for a Chancery suit? (*b*). The legal question arose in *Doe v. Hughes* (*c*) before the Court of Exchequer, and the Court held that *a charge had*

(*f*) See the cases cited in note (*a*), p. 462, *supra*.

(*a*) See *Gosling v. Carter*, 1 Coll. 650 (where the V. C. said that the intention to be collected was, that the heir-at-law should have nothing to do with it); *Robson v. Flight*, 34 Beav.

110, 5 N. R. 344; S. C. on appeal, 4 De G. J. & S. 608; *Doe v. Hughes*, 6 Exch. 231; *Forbes v. Peacock*, 11 M. & W. 637, 638.

(*b*) See *Robinson v. Lowater*, 5 De G. M. & G. 275.

(*c*) 6 Exch. 223.